

Dr. Santosh Kumar Awasthi v. State of U.P. & Others

Allahabad High Court · Division Bench · 13 May 2011 · WRIT - C No. 13859 of 2011 · **Writ petition disposed of (relegated to the Section 127 appeal; recovery stayed 30 days)**

HEADNOTE

Against a final order of theft assessment under Section 126 of the Electricity Act, 2003 (here, the order disposing of the consumer's objections), the remedy is the statutory appeal under Section 127 read with Clause 6.8(d) of the U.P. Electricity Supply Code, 2005, on deposit of half of the assessed amount. The writ court relegated the consumer to that appeal — to be entertained without a limitation objection — and stayed recovery for 30 days, without adjudicating the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(d)

Remedy against a final theft assessment — statutory appeal under s.127 / Clause 6.8(d)

HOLDING

The remedy against a final order of assessment is the statutory appeal under Section 127 read with Clause 6.8(d) of the Code, on deposit of half the assessed amount; the writ court relegated the consumer to that appeal, directing it be entertained without a limitation objection, staying recovery for 30 days, and leaving the merits and any stay to the appellate authority. ¶ [directions \(unnumbered order\)](#)

LIMITING FACTS

The consumer's objections to the provisional assessment had been disposed of by the Executive Engineer's order dated 27.11.2010; a demand notice followed.

PRINCIPLE TAGS

relegate-to-statutory-remedy Against a final theft-assessment order, the consumer is relegated to the s.127 / Clause 6.8(d) appeal (with the half-deposit), the writ court giving only limitation protection and a short recovery stay. ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ASSESSMENT

The Court expressly stated it had not adjudicated the petitioner's claim on merits; stay during the appeal was left to the appellate authority. ¶ [unnumbered order](#)